

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 21, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 7	25CV474331	Amy Hunter vs San Jose Motorsport, Inc. et al.	Petition to Compel Arbitration Scroll down to Line 7 for Tentative Ruling.
LINE 8	25CV482719	David Dixon, Jr., Ind. And as SII to the Estate of David Dixon, Sr. et al vs Jason Murray et al.	Petition to Compel Arbitration Scroll down to Line 8 for Tentative Ruling.
LINE 9	26CV489684	Baoxin Ling vs Jieqian Xing et al	Motion to Strike Scroll down to Line 9 for Tentative Ruling.

- 00000 -

9:01 A.M.			
LINE 1	21CV390552	Rad Law Group, APLC et al vs William Curry	Hearing: Order of Examination Parties to appear.
LINE 2	24CV440130	Deluxe Windows and Clean Builders Company vs Gonzalez Family Realty LLC et al	Motion to Withdraw as Attorney Parties to appear.
LINE 3	25CV478927	Waichiro Miki vs Yue Zhao et al	Motion to Withdraw as Attorney OFF CALENDAR. Moving party withdraw the motion and plaintiff filed a notice of settlement.
LINE 4	26CV496227	Lorraine Aguilar vs Jacob Garcia	Hearing: Order of Examination Parties to appear.

- 00000 -

9:00 A.M.

Calendar Line # 2

Case Name Linda Lisner vs City of San Jose et al.

Case No. 23CV416519

Motion for Order for Admissions Deemed Admitted and Sanctions

I. BACKGROUND

This case stems from a personal injury/premises liability case that was filed on May 18, 2023. Before the Court is Plaintiff Linda Lisner's ("Lisner") Motion for Order for Admissions to be Deemed Admitted and monetary sanctions against Defendant Johnstone Moyer Inc's ("JMI") that was filed on October 30, 2025. The motion was accompanied by a proof of service indicating electronic mail service on that same day.

The Court has carefully reviewed Plaintiff's moving papers including, notice of motion, memorandum of points and authorities, Declaration of Jerome Belloti and attached Exhibit A, and proof of service (totaling 24 pages); Defendant JMI's Opposition (totaling 20 pages); Declaration of Nicholas K. Wong in support of defendant's opposition and Exhibits 1-11 (totaling 74 pages); proofs of service; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

The Court notes procedural violation by the defendant. Defendant filed opposition papers on July 10, 2026. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by July 8, 2026. The papers were two days late.

California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. However, the Defendant JMI and defense counsel is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers.

B. REQUEST FOR ADMISSIONS

Pursuant to California Code of Civil Procedure sections 2033.280:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.